

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

Index No.:

-----X
MICHAEL T. BAKER,

SUMMONS

Plaintiffs,

Plaintiff designates
QUEENS County as the
place of trial.

-against-

THE CITY OF NEW YORK, P.O. MICHAEL DESETTO
and P.O. JOHN DOE (P.O. DESETTO's partner
on September 8, 2014),

The basis of venue
is:
The County where the
Tort arose

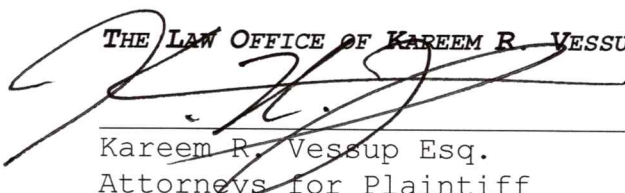
Defendants.
-----X

The Tort arose in
QUEENS County, State
of New York

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA, NEW YORK
AUGUST 7, 2017


THE LAW OFFICE OF KAREEM R. VESSUP ESQ.

Kareem R. Vessup Esq.
Attorneys for Plaintiff
MICHAEL T. BAKER
89-31 161st Street Suite 705
Jamaica, New York 11432
(718)219-8744
Our File No. 14-1371

TO: The City of New York
C/O NYC Law Department
100 Church Street
New York, NY 10007

P.O. Michael Desetto
One Police Plaza
New York, NY 10038

P.O. JOHN DOE
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
MICHAEL T. BAKER,

Plaintiffs,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. MICHAEL DESETTO
and P.O. JOHN DOE (P.O. DESETTO's Partner
on September 8, 2014),

Defendants.
-----X

Plaintiffs **MICHAEL T. BAKER**, by their attorneys THE LAW
OFFICE OF KAREEM R. VESSUP ESQ., complaining of the Defendants,
respectfully allege upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff **MICHAEL T. BAKER** was a resident of the County of Queens, City and State of New York who has now relocated to North Carolina.

2. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was, and still is, a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

3. Upon information and belief, at all times mentioned, Defendants **P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** were and continue as Police Officers of the Defendant **THE CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and/or employees of the Defendant, **THE CITY OF NEW YORK**

4. Upon information and belief Defendant **P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8,**

2014) encountered Plaintiff during the performance of their duties as officers of Defendant **THE CITY OF NEW YORK**.

BACKGROUND FACTS

5. Upon information and belief, on September 8, 2014 Plaintiff **MICHAEL T. BAKER** was walking with a friend named Elliot Ellis in front of 177-23 106th Road at approximately 6:40PM.

6. Upon information and belief, Elliot Ellis lived at the aforementioned address.

7. Upon information and belief, Defendants **P.O. MICHAEL DESETTO** and **P.O. JOHN DOE** (**P.O. DESETTO's partner on September 8, 2014**) were on duty for the NYPD and were occupying an unmarked NYPD Chevy Impala vehicle.

8. Upon information and belief, Defendants **P.O. MICHAEL DESETTO** and **P.O. JOHN DOE** (**P.O. DESETTO's partner on September 8, 2014**) approached Plaintiff without a legal basis to do so.

9. Upon information and belief, during this encounter with Plaintiff one or both of these Defendants had their gun drawn and pointed at the chest of Plaintiff.

10. Upon information and belief, one or both of these Defendants frisked Plaintiff without legal cause or justification.

11. Upon information and belief, Defendants arrested Plaintiff by handcuffing him and placing him in the unmarked NYPD Chevy Impala vehicle and transporting him to the NYPD 103rd Pct. reportedly to conduct a strip search of Plaintiff.

12. Upon information and belief, Plaintiff was taken to the NYPD 103rd Precinct and strip searched without legal cause or justification.

13. Upon information and belief, upon finding nothing illicit or illegal on Plaintiff Defendant **P.O. MICHAEL DESETTO** charged Plaintiff with Disorderly Conduct; a Violation under New York's Penal Law.

14. Upon information and belief, thereafter Plaintiff remained in custody for approximately 24 hours until he was arraigned in Queens County Criminal Court on April 9, 2014.

15. Upon information and belief, during this time Defendant **P.O. MICHAEL DESETTO** provided false information including a false, sworn accusatory instrument to the Queens County District Attorney's Office to initiate a criminal prosecution against Plaintiff for a purpose repugnant to the legitimate ends of justice.

16. Upon information and belief, at the time of Plaintiff's arraignment the charge against him was dismissed and sealed.

AS AND FOR A FIRST CAUSE OF ACTION

17. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "16" with full force and effect as though set forth at length herein.

18. That on or about September 8, 2014 at approximately 6:40pm at 177-23 106th Road Defendants **THE CITY OF NEW YORK, P.O.**

MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's Partner on September 8, 2014) jointly, severally and intentionally engaged in conduct that subjected Plaintiff to a reasonable apprehension of an impending, harmful or offensive touching by approaching Plaintiff with raised arms, batons and other weapons and/or devices.

19. Plaintiff did not consent to Defendants' conduct, and that conduct was not otherwise allowed by law.

20. As a direct and proximate result of the Defendants' conduct Plaintiff was damaged.

AS AND FOR A SECOND CAUSE OF ACTION

21. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "20" with full force and effect as though set forth at length herein.

22. That on or about September 8, 2014 at approximately 6:40pm at 177-23 106th Road Defendants **THE CITY OF NEW YORK, P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's Partner on September 8, 2014)** jointly, severally and intentionally subjected Plaintiff to a harmful and offensive touching by grabbing, pulling, handcuffing and arresting Plaintiff.

23. Plaintiff did not consent to Defendants' conduct nor was it allowed by law.

24. As a direct and proximate result of the Defendants' conduct Plaintiff was damaged.

AS AND FOR A THIRD CAUSE OF ACTION

25. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "24" with full force and effect as though set forth at length herein.

26. That on or about September 8, 2014 beginning at approximately 6:40pm at 177-23 106th Road and continuing thereafter, Defendants **THE CITY OF NEW YORK, P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's Partner on September 8, 2014)** jointly and severally and without any warrant or any other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff **MICHAEL T. BAKER**, restrained him and interfered with his liberty and took him into custody without authority to the NYPD 103rd Precinct in Queens County and there sought to charge him with one or more violations of the New York State Penal Law.

27. The Plaintiff was held in custody for approximately 24 hours until he was arraigned in criminal court for at least one violation of the New York State Penal Law.

28. Plaintiff did not consent to Defendants' conduct nor was it allowed by law.

29. As a direct and proximate result of the Defendants' conduct Plaintiff was damaged.

AS AND FOR A FOURTH CAUSE OF ACTION

30. Plaintiff repeats, reiterates and re-alleges all of the

allegations contained in paragraphs "1" through "29" with full force and effect as though set forth at length herein.

31. That on or about September 8, 2014 at approximately 6:40pm at 177-23 106th Road Defendants **THE CITY OF NEW YORK, P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** intentionally confined the Plaintiff against his will and without his consent.

32. At all times that Plaintiff was confined he was aware of his confinement.

33. At no time did Plaintiff consent to being confined, and his confinement was not otherwise allowed by law.

34. As a direct and proximate result of Defendant's conduct Plaintiff was damaged.

AS AND FOR A FIFTH CAUSE OF ACTION

35. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "34" with full force and effect as though set forth at length herein.

36. That on or about September 8, 2014 at approximately 6:40pm at 177-23 106th Road Defendants **THE CITY OF NEW YORK, P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** jointly and severally and forcibly searched and seized plaintiff without previously having the required legal cause or suspicion to do so.

37. As a result of the aforementioned unlawful search and

seizure Plaintiff was subjected to an unlawful assault, unlawful battery, unlawful and excessive use of force and unlawful arrest.

38. Plaintiff did not consent to this unlawful use of force and it was not otherwise authorized by law.

39. As a direct and proximate result of the Defendants' conduct Plaintiff was damaged.

AS AND FOR A SIXTH CAUSE OF ACTION

40. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "39" with full force and effect as though set forth at length herein.

41. That on or about September 8, 2014 Defendants **THE CITY OF NEW YORK, P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** initiated a criminal proceeding against Plaintiff by providing false, incomplete and/or misleading information to the Queens County District Attorney's Office.

42. The aforementioned was initiated by Defendants **THE CITY OF NEW YORK, P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** without probable cause.

43. The criminal proceeding was initiated in malice in that it was initiated for a purpose other than the legitimate ends of justice.

44. The criminal proceeding continued from September 8, 2014 to September 9, 2014 when the charges against Plaintiff were

dismissed and sealed.

45. As a direct and proximate result of the Defendants' conduct plaintiff was damaged.

AS AND FOR A SEVENTH CAUSE OF ACTION

46. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "45" with full force and effect as though set forth at length herein.

47. Defendant **P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** were at all times relevant, duly appointed and acting officers of the Defendant **THE CITY OF NEW YORK** as employees of the New York City Police Department.

48. At all times mentioned herein, **P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** were acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.

49. Plaintiff **MICHAEL T. BAKER** brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

50. That on or about September 8, 2014 at approximately 6:40pm at 177-23 106th Road Defendants **P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** in their capacities as police officers, wrongfully touched, grabbed,

handcuffed and seized the Plaintiff **MICHAEL T. BAKER** in an excessive manner about his person. At no time did the Defendants have legal cause to grab, handcuff, seize, touch or subject the Plaintiff to the excessive use of force. The Plaintiff did not consent to this illegal touching nor was this touching privileged by law.

51. That on or about September 8, 2014 at approximately 6:40pm at 177-23 106th Road Defendants **P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** in their capacities as police officers, did place Plaintiff **MICHAEL T. BAKER** in imminent fear of physical contact by pointing a gun at Plaintiff and approaching the him with exposed baton and/or other objects to physically seize, strike and/or restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

52. That on or about September 8, 2014 at approximately 6:40pm at 177-23 106th Road Defendants **P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** in their capacities as police officers, without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and interfered with his liberty and then took him into custody to the NYPD 103rd Precinct in Queens County and there charged him with one or more violations of the New York State Penal Law. The Plaintiff was

thereafter held in custody for approximately 24 hours before he was arraigned in Queens County Criminal Court. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

53. That on or about September 8, 2014 at approximately 6:40pm at 177-23 106th Road Defendants **P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)**, armed police officers, while effectuating the seizure of the Plaintiff **MICHAEL T. BAKER** did search, seize, assault and commit a battery and grab the person of the Plaintiff without probable cause or a court authorized arrest or search warrant. Defendants did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was forced to endure a strip search procedure without the requisite legal cause. The Plaintiff was falsely arrested without Defendant possessing probable cause to do so and without a reasonable suspicion of probable cause. Plaintiff was kept in custody by Defendant for several hours until he was issued a criminal summons and released from police custody.

54. That on or about September 8, 2014 at approximately 6:40pm at 177-23 106th Road Defendants initiated a judicial proceeding against Plaintiff in Queens Criminal Court without first possessing probable cause. Said proceeding was initiated in malice in that it was brought for a purpose other than the ends of

justice. Said proceeding terminated on or about September 9, 2014 when all charges against Plaintiff were dismissed and sealed.

55. The above actions of the Defendant resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from being subjected to excessive use of force;
- g. Freedom from being subjected to unlawful summary punishment.

56. Defendants **P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** in their capacities as police officers subjected Plaintiff to such deprivations, either in a malicious manner or with reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

57. As a direct and proximate result of Defendant's acts plaintiff was damaged.

AS AND FOR AN EIGHTH CAUSE OF ACTION

58. Plaintiff repeats, reiterates and re-alleges all of the

allegations contained in paragraphs "1" through "57" with full forced and effect as though set forth at length herein.

59. That on or about September 8, 2014 at approximately 6:40pm at 177-23 106th Road Defendants **P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** in their capacities as police officers saw Plaintiff, an African American man, on the sidewalk.

60. Upon information and belief Plaintiff was not engaged in any conduct that would legally justify the Defendants stopping, seizing, frisking, questioning or even demanding information from the Plaintiff.

61. Upon information and belief, the Defendant approached Plaintiff for no reason other than the fact that he was an African American.

62. The Defendant **THE CITY OF NEW YORK**, has previously implemented, enforced, encouraged and sanctioned a policy, practice and/or custom of unconstitutional stops and frisks of City residents by the New York City Police Department. Said policy remained in effect and was being actively practiced on September 8, 2014.

63. Upon information and belief, without the reasonable articulable suspicion required under the Fourth Amendment, NYPD officers, including Defendants **P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** in their capacities as police officers herein, had been engaged in stops

and frisks of individuals, including Plaintiff **MICHAEL T. BAKER**.

64. Also because of the policy, practice and/or custom of the New York City Police Department its officers fail to confirm identification details and merely effectuate arrests based on assumption and race-based factors.

65. NYPD officers, in violation of the Equal Protection Clause of the Fourteenth Amendment, often have used, and on September 8, 2014 **P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** used, race and/or national origin - not reasonable suspicion - as the determinative factors in deciding to stop and frisk individuals generally, and Plaintiff herein specifically. The victims of such racial and/or national profiling are principally Black and Latino.

66. The NYPD's widespread constitutional abuses have flourished as a result of, and are directly and proximately caused by, policies, practices and/or customs devised, implemented and enforced by Defendant **THE CITY OF NEW YORK. THE CITY OF NEW YORK**, its employees, servants and or agents have acted with deliberate indifference to the constitutional rights of those who would come into contact with NYPD officers by: (a) failing to properly screen, train, and supervise NYPD officers, (b) inadequately monitoring NYPD officers and their stop and frisk practices, (c) failing to sufficiently discipline NYPD offices who engage in constitutional abuses, (d) encouraging, sanctioning and failing to rectify the NYPD's unconstitutional practices.

67. As a direct and proximate result of defendants' policies, practices, and/or customs, hundreds of thousands of City residents, in particular Black and Latino individuals including Plaintiff herein, have been subjected to unconstitutional stops and frisks by NYPD officers. Indeed, many Black and Latino persons repeatedly have been victims of unlawful stops and frisks by the NYPD.

68. Moreover, the NYPD's constitutional abuses have been attended by unlawful searches and seizures and, at times, excessive force.

69. Plaintiff **MICHAEL T. BAKER** was likewise subjected to an unconstitutional stop and frisk among other constitutional abuses including the use of excessive force all occurring on September 8, 2014.

70. The above actions of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from being subjected to excessive use of force;
- g. Freedom from being subjected to unlawful summary

punishment.

71. **THE CITY OF NEW YORK** subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

72. The direct and proximate result of the Defendants' acts is that the Plaintiff was damaged.

AS AND FOR NINETH CAUSE OF ACTION

73. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "72" with full force and effect as though set forth at length herein.

74. Defendant **THE CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as Plaintiff here, has not committed a crime and has not resisted arrest, that its police officers should only make an arrest based on probable cause.

75. Defendant **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest or search warrant, said police officers of

THE CITY OF NEW YORK are not to arrest individuals such as the Plaintiff here where probable cause is lacking.

76. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, that Probable cause must be present before an individual such as Plaintiff herein can be arrested.

77. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK** which caused that Defendants **P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** in their capacities as police officers to falsely arrest, illegally seize and search the Plaintiff, commit an assault/battery to his person under the belief that he would suffer no disciplinary actions for his failure to take proper or prudent steps in this case.

AS AND FOR A TENTH CAUSE OF ACTION

78. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "79" as if set forth at length herein.

79. Defendant **THE CITY OF NEW YORK** was negligent in that prior to, and at the time of the acts complained of herein, due to the prior history of **P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** Defendant knew or should have known of the bad disposition of said Defendant or had knowledge of facts that would put a reasonably prudent employer on

inquiry concerning his bad disposition and the fact this officer was not suitable to be hired and employed by **THE CITY OF NEW YORK** and that due to his lack of training, this officer should have had adequate supervision so that he would not arrest innocent individuals. Defendant failed to act reasonably in supervising, disciplining, removing or otherwise taking appropriate action against this officer to protect the Plaintiff herein and other members of the community similarly situated.

80. As a direct and proximate result of the Defendants' failures Plaintiff was damaged.

AS AND FOR AN ELEVENTH CAUSE OF ACTION

81. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "80" as if set forth at length herein.

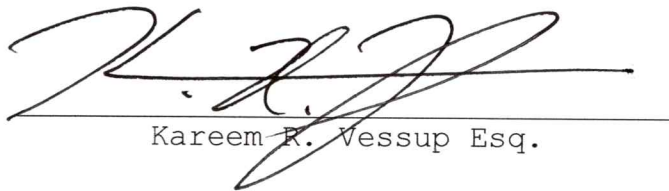
82. That on or about September 8, 2014 at approximately 6:40pm at 177-23 106th Road Defendants **P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** in their capacities as police officers owed Plaintiff **MICHAEL T. BAKER** a duty to act reasonably in the carrying out of his duties and responsibilities as a police officer.

83. That on or about September 8, 2014 at approximately 6:40pm at 177-23 106th Road Defendants **P.O. MICHAEL DESETTO and P.O. JOHN DOE (P.O. DESETTO's partner on September 8, 2014)** in their capacities as police officers, breached their duty to

Plaintiff by conducting themselves in a manner that was excessive, overly aggressive, willful, wanton, grossly negligent, reckless and negligent all in disregard of Plaintiff's rights as a citizen of the United States and the State of New York.

84. As a direct and proximate result of the Defendant's conduct Plaintiff was damaged.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in an amount that exceeds the jurisdictional limit of all lower courts, together with punitive damages, attorney's fees and costs for bringing this case.



Kareem R. Vessup Esq.

ATTORNEY VERIFICATION

KAREEM R. VESSUP, affirms under penalty of perjury and Pursuant to CPLR §2106:

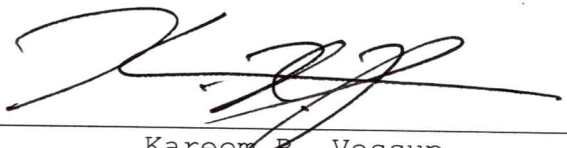
That affirmant is the attorney for the Plaintiff in the action within; that affirmant has read the foregoing:

SUMMONS AND COMPLAINT

and knows the contents thereof; that the same is true to affirmant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true; that the reason that this verification is not made by Plaintiff and is made by affirmant is that Plaintiff is not presently in the county wherein the affirmant maintains his law office.

Affirmant further says that the source of affirmant's information, and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge, are from investigations made on behalf of said Plaintiff.

Dated: JAMAICA, NEW YORK
SEPTEMBER 7, 2017


Kareem R. Vessup